

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 8, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Presentation of Main Street Leadership award to Councilman Richard Johnson. Bruce Heimbeck, Cheyenne DDA and Main Street Advisory Board member, commented on Mr. Johnson's volunteerism on projects, and several local community agencies that have benefitted from fundraising efforts in which he has been involved. Mr. Heimbeck, Councilman White and Vicki Dugger, DDA Executive Director, presented a plaque to Mr. Johnson with Mr. Johnson expressing appreciation to the community, colleagues, friends and family for supporting him on the various projects he has participated in for the community.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. White, and pursuant to support received by Mr. Case and Mr. Cook, Agenda Item #19(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on September 24, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Seth Lloyd, Planning and Development Department, provided information on the property requested by the landowner to be annexed and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the public hearing having been met, Mayor Orr closed the public hearing.

ORDINANCE – 3rd READING – Vacating the 9th Street right-of-way lying west of Snyder Avenue between fractional Block 523, all of Blocks 524 and 573, and fractional Block 574, Original City of Cheyenne, Laramie County, Wyoming. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4246)

ORDINANCE – 1st READING – Amending Chapter 12.24, Art in Public Places, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, pertaining to the Art in Public Places Committee – referred to Finance Committee. (Sponsors – Mr. Johnson and Mr. White)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing a street name change from “Prairie Avenue” to “Back Way” for the portion of the street located between Dell Range Boulevard and the undeveloped section of Prairie Avenue, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to adopt, seconded by Mr. Case. Mr. Roybal moved to amend by substituting “Short Road” for “Back Way”, seconded by Mr. Case. Upon inquiry, Jordan Evans, GIS Cooperative, advised it is his understanding that local emergency management agencies don’t have any concerns with the name “Short Road”. Chief Greg Hoggatt, Cheyenne Fire and Rescue, confirmed that “Short Road” is acceptable for emergency management purposes. He explained this change is part of an ongoing process to make updates to street names that are problematic. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#5952)

RESOLUTION – Terminating the agreement between the City of Cheyenne, Wyoming, and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services. Tammy Maas, Board President, Cheyenne Animal Shelter, advised they were available for any questions. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Case. Mr. White moved to amend by substitute submitted on 10-3-18, seconded by Mr. Case. David Pope, Board Treasurer, Cheyenne Animal Shelter, advised there were no concerns with the proposed substitute. Appreciation was expressed to the Board for their support in addressing issues. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#5953)

[CA] RESOLUTION – Designating Arts Cheyenne as the Local Arts Agency for the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsors – Mr. Johnson and Mr. White)

[CA] RESOLUTION – Providing for the review and approval of the South Cheyenne Water & Sewer District’s Federal SLIB Chapter 3 Mineral Royalty grant application before the Wyoming State Loan and Investment Board for the emergency repair of the existing sanitary sewer siphon crossing of Crow Creek Project – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CAJ] RESOLUTION – Declaring Cheyenne a City of Kindness and Generosity – referred to Public Services Committee. (Sponsors – Mr. Johnson, Mr. Roybal and Mr. White)

[CAJ] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Casper, Casper Police Department, for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#6911)

[CAJ] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS). Motion (per Consent Agenda) carried (amount not to exceed \$49,825.00). (#6912)

[CAJ] Contract between the City of Cheyenne, Youth Alternatives Division, and State of Wyoming, Department of Family Services, for kinship advocacy services for displaced, at-risk youth – referred to Finance Committee.

[CAJ] Minimum Revenue Guaranteed Payment agreement between the City of Cheyenne, Wyoming, and the Cheyenne Regional Air Service Focus Team, c/o Cheyenne LEADS – referred to Finance Committee.

[CAJ] Grant Award between the City of Cheyenne, Police Department, and Wyoming Office of Homeland Security to purchase protective gear for SWAT team – referred to Finance Committee.

[CAJ] Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC, for the pre-construction and construction phase services for Cheyenne Municipal Courts Building (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CAJ] Consideration of Bid #E-4-19 for furnishing ice control product for the City of Cheyenne, Public Works Department (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Desert Mountain Corp., Riverton, Wyoming, in the amount of \$128,540.00 for the 1st year and \$132,960.00 for the second year for a total of \$261,500.00, with the option to purchase additional tons).

[CAJ] Consideration of Bid #E-7-19 for furnishing two new 2018-2019 rough mowers for the City of Cheyenne Golf Division – referred to Finance Committee.

[CAJ] Consideration to purchase 76 Self Contained Breathing Apparatuses (SCBA's) along with accessory equipment from L.N. Curtis & Sons, Salt Lake City, Utah, for the Cheyenne Fire and Rescue Department – referred to Finance Committee.

[CAJ] Restaurant liquor license application filed with the City Clerk's office for The Golden Egg of Cheyenne, Inc. d/b/a Epic Egg, 2300 Carey Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Transfer of retail liquor license application filed with the City Clerk's office for Cheyenne Frontier Days, Inc. d/b/a Cheyenne Frontier Days, 1230 West 8th Avenue, Cheyenne, Wyoming (license currently held by Steamboat's, LLC d/b/a Steamboat's Wyoming Steak House, 115 E.

17th St.). Tom Hirsig, CEO, Cheyenne Frontier Days, provided information related to their retail liquor license request, new headquarters and conference center project and involvement with contributing to the community. During discussion and in response to inquiries, Mr. Hirsig provided information on CFD's mission statement; the new building assisting with economic development for the City; retail liquor license cost savings due to not having to partner with an alcohol caterer; access and parking changes related to the new building; "parking" the license until the building is completed; Cheyenne's need for a conference center; tourism efforts on a year round basis and their business plan for operating under the license. Sam Galeotos commented in opposition of the application, and stated his belief that operation of a retail liquor establishment is contradictory to CFD's mission statement. He discussed CFD's non-profit status and how license approval may affect private businesses. Discussion followed on the mission and image of CFD. Kevin Morris, representative for Steamboat's Wyoming Steak House, spoke in favor of the application and explained if the transfer is approved Steamboat's investors will not receive any proceeds from the transfer. He stated CFD is a responsible and economical candidate for the license, and that requirements set forth in Wyoming §12-4-104(b) have been met. Upon inquiry, he advised Steamboat's operated under the license for approximately five years. Randy Reed, attorney representing CFD, expressed his opinion that it isn't permissible to contemplate competition as a reason to deny approval of a license transfer, and stated the governing body's role is to determine that the five statutory requirements are satisfied. Bryan Grzegorzcyk, owner, Alf's Pub, spoke in support of the transfer and provided information on Alf's temporary alcohol catering permits during CFD and liquor liability insurance cost. Upon inquiry, Mr. Grzegorzcyk provided information regarding alcohol related violations which occurred at Frontier Park during CFD, stating none were associated with his catering permits. Captain Nathan Buseck, Cheyenne Police Department, further explained violations involving underage service and over consumption, and other non-CFD alcohol related citations during the event. Evan Asher commented on the lack of event venues in the community, and spoke in favor of the transfer. In response to a prior comment, Mr. Hirsig advised non-profit agencies are eligible to hold liquor licenses with revenue subject to taxes, and there are no special exemptions currently available for financing their project. Reporting for Finance Committee, Mr. White moved to approve, seconded by Mr. Roybal. Discussion continued and included: Statutory and city code requirements for transferring licenses; other non-profit entities in the state that hold liquor licenses; special club license not sufficient for CFD's particular scenario; city retail license fee; City's involvement in a transfer between two private entities; focus being applied towards the statutory requirements; origin of CFD, and archaic state liquor laws. Motion carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Luna and Mr. Roybal. Voting "no" - Dr. Rinne, Mr. White, Mr. Shanor and Mayor Orr.

Under other business:

Carol Intlekofer, City Clerk, requested, due to timeliness involving a contract renewal, the following item be introduced: Contract Modification No. 1 to Contract #6427 between the City of Cheyenne, Fire and Rescue Department, and Physio-Control, Inc., Redmond, Washington, for renewal maintenance services for factory-authorized inspection and repair services of LIFEPAC devices. Mayor Orr referred the item to Finance Committee.

Mr. Laybourn expressed, for the record, his concern regarding possible removal of “Cottonwood Joe”, the Cottonwood tree located near the west entrance of the Municipal Building. He submitted and discussed a past risk assessment which rated the tree as low risk and in general good health, and Resolution #4513 relating to preserving cultural heritage and historical assets (on file with the City Clerk’s office). Mr. Laybourn suggested the decision for removal of the tree go before the governing body, and landscaping for areas adjacent to the Municipal Building be reviewed.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:43 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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